

3-4. 24CV01768 Sprague, Robert Eugene v. Garnett, Pamela Ann

EVENT: (1) Defendant's Motion for Summary Judgment (Continued from 4/29/26)

(2) Case Management Conference

Defendant's Motion for Summary Judgment is GRANTED.

Preliminarily, the opposition includes a declaration from Plaintiff as well as statements from witnesses Austina Fillion, Luke Searle Hooper, and Denice Helen. The evidence attempts to portray Plaintiff as someone who is careless, leaving her keys accessible to people who come and go on her property. The evidence suggests that there were many less than reputable people frequenting her property. Plaintiff's declaration states that he personally observed Plaintiff loaning her vehicle to Jorge Contreras on occasion.

Defendant objects to the admissibility of some of this evidence on various grounds. CCP 437c(q) only requires the Court to rule on objections to evidence that is material to the disposition of the motion. As discussed herein, even if the Court credits all evidence proffered in the opposition, the evidence does not create a triable issue of fact on the prima facie elements that are the subject of this motion. As a result, the Court declines ruling on the evidentiary objections.

CACI 724 Negligent Entrustment of Motor Vehicle

1. That [name of driver] was negligent in operating the vehicle;
2. That [name of defendant] [owned the vehicle operated by [name of driver]/had possession of the vehicle operated by [name of driver] with the owner's permission];
3. That [name of defendant] knew, or should have known, that [name of driver] was incompetent or unfit to drive the vehicle;
4. That [name of defendant] permitted [name of driver] to drive the vehicle; and
5. That [name of driver]'s incompetence or unfitness to drive was a substantial factor in causing harm to [name of plaintiff].

[Emphasis Added]

No Triable Issue of Fact Exists on Either Element nos. 3 or 4

The word "driver" is highlighted because it is especially relevant in this case. The element requires that defendant permitted the driver to drive the vehicle. It is undisputed that Joshua Payan was the driver of the vehicle at the time of the accident. (UMF 2)

The question then is whether a triable issue of fact exists that Defendant permitted Mr. Payan to drive the vehicle. The legal question is not whether Plaintiff permitted some other third party to drive the vehicle who, in turn and without Defendant's authorization, permitted another third person to drive the vehicle. Plaintiff has cited no authority, nor is the Court aware of any such authority, which imposes liability under a negligent entrustment theory in those circumstances.

Rather, the jury instruction is clear – Defendant must have known the driver (in this case Mr. Payan) was unfit to drive. The fact Plaintiff may have authorized Mr. Contreras to operate the vehicle and that he permitted Mr. Payan to operate the vehicle is not relevant, unless there was evidence that Defendant informed Mr. Contreras that Mr. Payan was authorized to operate the vehicle. All that is relevant is whether Plaintiff authorized Mr. Payan to operate the vehicle.

Defendants declaration states she did not know who Mr. Payan was or that he existed until after the accident. Contrary to Plaintiff's position, this establishes Defendant's initial burden on summary judgment with respect to this element. Further, Plaintiff provides no evidence contradicting the fact that Defendant did not know of Mr. Payan's existence until after the accident. Consequently, no triable issue of fact exists with respect to element nos. 3 and 4 of CACI 724.

Defendant shall prepare a form of order consistent with this ruling within 2 weeks. The Case Management Conference is continued to June 17, 2026 at 10:30am for status of judgment.

5. 25CV01142 Kremer, Peter et al. v. Yvette B Bocast, Trustee of the Desley C Cowan Trust et al.

EVENT: Motion to Compel Responses to Discovery and Motion to Deem Requests for Admissions Admitted

In light of the stipulation and order, the motion is moot.